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External Privacy Notice

This Privacy Notice is issued by each of the Controller entities listed under the heading entitled **“Details of Controllers”** below (together, **“Vale,” “we,” “us”** and **“our”**). Vale operates <https://valebasemetals.com/> and may operate other websites.

For the purpose of UK and Brazil data protection laws, we are the Controller of personal data that we collect about you through our websites. ‘Controller’ is a legal term – it means that we make decisions about how and why we Process your Personal Data and, because of this, we are responsible for making sure it is used in accordance with data protection laws.

In this Privacy Notice, we use some defined terms, and their definitions are explained in section 19 below.

Some elements of this Privacy Notice will only apply in relation to use of Personal Data that is governed by the laws of Canada, and some elements will only apply in relation to the use of Personal Data that is governed by the laws of the UK and/ or by the laws of Brazil. We have specifically set out where this applies in the Notice. The protection of privacy and Personal Data reflects Vale’s values, and this Privacy Notice aims to affirm our commitment to security and transparency in the Processing of such Personal Data, in accordance with applicable Personal Data protection laws.

This Privacy Notice aims to detail how Vale Processes Personal Data. This Privacy Notice applies to you if you: (a) access or use our products or services; (b) access or use our website (accessible at <https://valebasemetals.com/>) that displays or links to this Privacy Notice; (c) provide, or authorize another person or organization to provide, Personal Data to us (e.g., when you submit a complaint in our Whistleblower Channel); or (d) sign up to receive or respond to our promotional emails or other marketing activities; or (e) apply for a career opportunity with us.

In this Privacy Notice, reference to our **“products and services”** includes our website and any career-related platform linked from our website. Defined terms used in this Notice are explained under the heading entitled **“Definitions”** below. This Privacy Notice does not form part any contract to provide products or services.

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1. Your consent

Where the laws of Canada apply: This Privacy Notice explains how and why we handle Personal Data in connection with our business activities in Canada, and our products and services, and is made available to you by appropriate means before or when we collect your Personal Data. By providing (or authorizing another person or organization to provide) your Personal Data to us, you consent to our collection, use, disclosure, and retention of your Personal Data as described in this Privacy Notice and as otherwise permitted by applicable law. We might also obtain your additional consent in certain circumstances, including when required by law, to collect, use, disclose or retain your Personal Data for other specific purposes.

When the laws of laws of the UK or Brazil apply: This Privacy Notice explains how and why we handle Personal Data in connection with our business activities in the UK and in Brazil and is made available to you by appropriate means before or when we collect your Personal Data. We rely on a number of different permitted reasons required by law to use your Personal Data (called a “lawful basis”). These are explained below in section 6 of this Privacy Notice. One of these could be that you have provided your consent to our use of your Personal Data, but we also rely on other available lawful bases.

You may withdraw your consent at any time, subject to legal or contractual restrictions and on reasonable notice to us, but then you might not be able to proceed with your intended

interactions or transactions with us or otherwise receive the full benefit of our products and services. Please refer to section 8 of this Privacy Notice to learn about withdrawing your consent.

Where permitted by applicable law, we may collect, use, disclose and retain your Personal Data without your consent.

2. What Personal Data is collected?

a) We may collect the following categories of Personal Data about you:

- Identifiers and contact details: full name, email address, postal address, telephone numbers and other information you provide to us when you contact us.
- Demographic information: gender; date of birth / age, nationality, salutation, title, and language preferences, marital status and number of dependents.
- Consent records: records of any consent you have given, together with the date and time, means of consent and any related information (e.g., the subject matter of the consent).
- Communications: information that we exchange with you, including when you contact or correspond with us for customer support or otherwise interact with us by telephone, online, email, or in-person.
- Marketing: information such as your preferences for receiving promotional communications about our products and services and details about how you engage with our communications and advertisements.
- Internet or other electronic network activity: technical information when you access or use our website such as your IP address, device ID, browser type, operating system, device type, data about the pages you access on our website or the functionalities used on our website, language preferences, email bounce backs, click-throughs, general geographic information, and clickstream data.
- Views and opinions: any views and opinions that you choose to send to us or publicly post about us on social media platforms.
- Professional and career-related information: information you submit to us when applying for a career opportunity, which may include your education and employment history, your resume, letters of reference, references, and any additional information provided by you in an application form or correspondence.
- Biometric and health data: any special needs or health condition and information relating to accommodations that you may request during the recruitment Process if you apply for a career opportunity with us.
- Special Category Personal Data and Criminal Offence Data: We do not routinely collect Special Category Personal Data or Criminal Offence Data. However, we may Process Special Category Personal Data and/or Criminal Offence Data where you provide it to us.

- Other information: Any other information that you or another person or organization on your behalf provide to us, or inferences drawn from your Personal Data, such as your preferences and interests.

b) Children and Adolescents' Personal Data

Our products and services are not directed at children (i.e., persons under 16* years of age; *depending on jurisdiction) and adolescents (i.e., persons under 18 years of age, or other valid online consenting age). Therefore, we do not process Personal Data of individuals under the age of 18.

If you suspect that someone under the age of 18 is using our products and services without proper authorization, please do not hesitate to contact us using the contact information in section 18 of this Privacy Notice.

3. Collection of Personal Data

We collect or obtain Personal Data about you from the following sources:

- Data provided to us: We obtain Personal Data when those data are provided to us (e.g., where you contact us via email or telephone, or by any other means, or when you provide us with your business card, when you submit a job application, a complaint in our Whistleblower Channel or when you subscribe to our newsletters or other commercial electronic communications). If you give us the Personal Data of another individual, then you must take all measures, including obtaining the individual's valid consent, when applicable, to ensure that you have the lawful right to collect and disclose the information to us and for us to Process the Personal Data as explained in this Privacy Notice.
- Data we obtain in person: We obtain Personal Data during meetings, at trade shows, during visits from sales or marketing representatives, or at events we attend.
- Collaborations: We obtain Personal Data when you collaborate with us in research or in an advisory / consultancy capacity.
- Relationship data: We collect or obtain Personal Data in the ordinary course of our relationship with you (e.g., we provide a service to you).
- Data you make public: We collect or obtain Personal Data that you manifestly choose to make public, including via social media (e.g., we may collect information from your social media profile(s), if you make a public post about us).
- Website, email, and advertisement data: We collect or obtain Personal Data when you engage with our website, email messages or advertisement or use any features or resources available on or through our website.
- Content and advertising information: If you interact with any third-party content or advertising on a website or in an app (including third party plugins and Cookies) we may

receive Personal Data from the relevant third-party provider of that content or advertising.

- **Third party information:** We collect or obtain Personal Data from third parties who provide it to us (e.g., credit reference agencies; law enforcement authorities, persons and organizations that engage with our products and services on your behalf or for your use. and we may receive it from your colleagues and/or associates).

4. Creation of Personal Data

We also create Personal Data about you in certain circumstances, such as records of your interactions with us, and details of your past interactions with us. We may also combine Personal Data from any of our products or services, including where those data are collected from different devices.

More information regarding the use of this data can be found in the specific terms of each service, available on their respective platforms.

5. What is the purpose of collecting Personal Data?

We may collect and use your Personal Data: (a) for our general business and legal compliance purposes relating to or arising from our relationship and dealings with you and your use of our products and services; (b) to improve our business, products and services, including our website; (c) to provide you with personalized information about our products and services and other products and services we consider might be of interest to you; (d) for additional specific purposes we may communicate to you; and (e) as otherwise permitted by applicable law. We may use your Personal Data to create non-Personal Data.

a) General business and legal compliance purposes

We may collect and use your Personal Data for our general business and legal compliance purposes relating to or arising from our relationship and dealings with you and to provide you with products and services, including:

- contacting and corresponding with you regarding your use of our products and services and to provide you with customer care services;
- Processing and responding to your inquiries, requests, and other communications;
- providing you with information (including by email and other electronic messages) regarding our business, products and services and other products and services that might be of interest to you;
- complying with, and assessing compliance with, applicable laws, contractual and legal obligations, and our internal policies and procedures;
- preventing, detecting, and investigating fraudulent, harmful, unauthorized, unethical, or illegal activity, including cyberattacks and identity theft; and

- protecting and enforcing our rights, interests, and remedies (including the enforcement of releases and waivers) and the rights, interests, and remedies of our customers and other persons and organizations.

b) Enable our recruitment process when you apply for one of our job openings

We may collect and use your Personal Data to support our recruitment processes when you apply for one of our job openings. This includes evaluating your qualifications, contacting you during the selection process, and facilitating any necessary accommodations in accordance with applicable laws and our internal policies.

c) When you submit a report through our Whistleblower Channel

We may process your Personal Data when you submit a report through our whistleblower channel. Such processing is carried out to investigate the reported matter, adopt appropriate remedial or disciplinary measures, and ensure compliance with our legal, regulatory, and ethical obligations.

d) Improving our business, products and services

We may collect and use your Personal Data to understand and analyze your use of our website, our products and our services with a view to improving our website, products and services and developing new products and services. If required by applicable law, we will use de-identified information for those purposes, so the information does not identify you directly.

Examples of our research and data analytics include:

- analyzing customer demographics;
- analyzing the use of our facilities and services and related equipment and technologies; and
- using web analytics services to analyze the use of our website.

e) Advertising and marketing purposes

We may collect and use your Personal Data to provide you with customized information, offers, and promotions regarding our products and services and other products and services that might be of interest to you, through our website and other websites, social media, and online services.

We may engage third-party advertising and social media companies to display advertisements for our products and services on websites, social media, and other online services. Those companies may use cookies and similar technologies to collect information about you and your interaction over time on their websites and online services and other websites and online services, and use that information to display advertisements that might be of interest to you. We may also share information about our customers with those companies to facilitate interest-based advertising to our customers and similar users on other websites and online services. You can learn more about your choices for limiting interest-based advertising in section 8 of this Privacy Notice.

f) Non-Personal Data

We may collect and use your Personal Data to create non-Personal Data (i.e., information that does not identify you, directly or indirectly) in accordance with applicable laws, and we may then use, disclose and retain the non-Personal Data as explained in section 12 of this Privacy Notice.

Our Processors may be located outside Canada, UK and/or Brazil, as explained in section 7 of this Privacy Notice.

6. What are the legal grounds for our Processing of your personal data?

Data protection laws require us to explain the legal grounds to justify our Processing of your Personal Data. For some Processing more than one legal ground may be relevant:

a) Processing necessary for the following legitimate interests:

- Provision of websites, apps, products, and services: providing our websites, apps, products, or services; providing promotional items upon request; and communicating with you in relation to those websites, apps, products, or services.
- Operating our business: operating and managing our business; operating and managing our websites, our apps, our products, and our services; providing content to you; displaying advertising and other information to you; communicating and interacting with you via our websites, our apps, our products, or our services; and notifying you of changes to any of our websites, our apps, our products, or our services.
- Planning: organizational planning; succession planning; making changes to the nature and scope of our operations or our business; mergers, acquisitions, dissolutions, demergers, liquidations, asset sales, divestitures, reorganizations, and similar corporate structuring arrangements.
- Management of IT systems: management and operation of our communications, IT, and security systems; and audits (including security audits) and monitoring of such systems.
- Health and safety: health and safety assessments and record keeping and providing a safe and secure environment at our premises where not strictly necessary for compliance with legal obligations.
- Financial management: sales; finance; corporate audit; and vendor management.
- Surveys: engaging with you for the purpose of obtaining your views on our websites, our apps, our products, or our services.
- Security: electronic security (including login records and access details); crisis management (elaboration of Evacuation Plan); and records of data where not strictly necessary for compliance with legal obligations.
- Improving our business, websites, apps, products, and services: identifying issues with our websites, our apps, our products, or our services; research and data analytics; planning improvements to our websites, our apps, our products, or our services; and creating new websites, apps, products, or services.

- For direct marketing communications.

b) Processing necessary to comply with our legal obligations:

- For compliance with laws and regulations that apply to us.
- For establishment, defence and enforcement of our legal rights or those of any other member of our group.
- For activities relating to the prevention, detection and investigation of crime.
- To carry out monitoring and to keep records;
- To deal with requests from you to exercise your rights under data protection laws.
- To Process information about a crime or offence and proceedings related to that.
- When we share your Personal Data with these other people or organisations:
 - Our legal advisors;
 - Fraud Prevention Agencies;
 - Law enforcement agencies and governmental and regulatory bodies such as HMRC, the Information Commissioner's Office in the UK or the Brazilian National Data Protection Authority; and
 - Courts and to other organisations where that is necessary for the administration of justice, to protect vital interests and to protect the security or integrity of our business operations.

c) Processing is necessary in connection with any contract that you have entered with us, or to take steps prior to entering into a contract with us:

- Provision of websites, apps, products, and services: providing our websites, apps, products, or services; providing promotional items upon request; and communicating with you in relation to those websites, apps, products, or services.
- Operating our business: operating and managing our business.

d) Processing with your consent:

- When you request that we share your Personal Data with someone else and consent to that;
- For some of our Processing of Special Categories of Personal Data such as about your health or disability access needs (and it will be explained to you when we ask for that explicit consent what purposes, sharing and use it is for.)

Please note that where we have indicated above that our Processing of your Personal Data is either:

- necessary for us to comply with a legal obligation; or
- necessary for us to take steps, at your request, to potentially enter into a contract with you, or to perform it

and you choose not to provide the relevant Personal Data to us, we may not be able to enter into or continue our contract with you or to provide you with services.

7. How does Vale share Personal Data?

a) Sharing with third parties:

Vale may share your Personal Data with other entities: (a) for purposes relating to or arising from our relationship and dealings with you and to provide you with products and services; (b) in accordance with your additional specific consents, when applicable; (c) as required or authorized by applicable law; and (d) in connection with a business transaction.

When we share your Personal Data with third parties that Process your Personal Data on our behalf and at our direction, this is considered a “use” under Canadian, UK and Brazil privacy laws and such Processing will be governed by this Privacy Notice.

When we share your Personal Data with third parties that Process your Personal Data for their own purposes (as a separate independent Controller), any Processing of your Personal Data by those third parties will be governed by the privacy policies of those third parties. We have no control over, or responsibility or liability for, the Processing of those third parties.

We may share your Personal Data with third parties that Process your Personal Data for their own purposes as follows:

- **General:** We share your Personal Data for purposes relating to or arising from our relationship and dealings with you and to provide you with products and services and as otherwise explained in this Privacy Notice or permitted by applicable law. For example, we may share your Personal Data with affiliated Vale entities/group companies; and with accountants, auditors, insurers, consultants, lawyers, and other outside professional advisors to Vale, subject to binding contractual obligations of confidentiality. We may also share your Personal Data with Processors to assist us in providing you with products and services, including support providers, CRM platform providers and data analytic agents.

- **Additional consents:** We may share your Personal Data in accordance with additional consents that you give during your interactions with us or other persons and organizations.
- **Law enforcement sharing:** We may share your Personal Data as required or authorized by applicable law, including to comply with a subpoena, warrant, or court or arbitral order or litigation disclosure obligation. We may also share your Personal Data to law enforcement agencies, governmental departments/bodies, statutory bodies, regulators, courts, court-appointed persons/entities, liquidators or other independent organizations if we reasonably believe the sharing is necessary or appropriate in connection with national security, law enforcement, or other issues of public importance (including tax and regulatory compliance), or if we reasonably believe the sharing is necessary or appropriate to protect and enforce our rights, interests, and remedies or to protect and enforce the rights, interests, and remedies of our customers or other persons and organizations, including to detect and prevent fraud and other illegal activities, to enforce any of the terms of use, terms of service, or other agreements that govern access to or use of any of our products or services.
- **Business transactions:** We may share your Personal Data in connection with a proposed or actual business transaction in which we are involved (e.g., a corporate amalgamation, reorganization, merger, or acquisition, or the sale or transfer of some or all of our business or assets). However, we will only share your Personal Data to the extent reasonably necessary for each transaction.

b) International data transfer:

Because of the international nature of our business, we may share Personal Data within the Vale group, and to the third parties set out above under the sub-heading entitled “Sharing with third parties.” Recipients of Personal Data we share may be located in all countries where the Vale group is present but in other countries globally as well. For this reason, we share Personal Data to other countries that may have different legal requirements and data protection compliance requirements to those that apply in the country in which you are located or in which you disclosed your Personal Data to us. We may share your Personal Data with entities in the following jurisdictions but also other jurisdictions globally where third-party recipients or their Processors are located:

- Argentina;
- Australia;
- Brazil;
- Canada;
- Chile;
- China;

- India;
- Indonesia;
- Japan;
- Malaysia;
- Oman;
- Peru;
- Singapore;
- United Kingdom; and
- Switzerland.

If any of our Processing activities require your Personal Data to be transferred outside the United Kingdom, we will only make that transfer if:

- the country to which the Personal Data is to be transferred ensures an adequate level of protection for Personal Data;
- we have put in place appropriate safeguards to protect your Personal Data, such as an appropriate contract with the recipient (Please contact the Data Protection Officer noted below if you wish to obtain a copy of these);
- the transfer is necessary for one of the reasons specified in data protection legislation, such as the performance of a contract between us and you; or
- you explicitly consent to the transfer.

If any of our Processing activities require your Personal Data to be transferred outside Brazil, we will only make that transfer if, in accordance with the Brazilian General Data Protection Law (LGPD) and with Resolution CD/ANPD No. 19 of August 23, 2024 (Brazil International Data Transfer Regulation):

- the country or international organization to which the Personal Data is to be transferred is officially recognized by the Brazilian Data Protection Authority (ANPD) as providing an adequate level of protection for Personal Data;
- we have put in place appropriate safeguards to protect your Personal Data, such as specific or standard contractual clauses, or binding corporate rules;
- the transfer is necessary for reasons permitted under the LGPD, such as the performance of a contract with you or compliance with a legal or regulatory obligation; or

- you explicitly consent to the transfer.

8. What are your privacy choices?

You have choices about the way we handle your Personal Data.

a) Opt-out of marketing communications

You can choose not to receive our marketing or promotional messages by email or text message by clicking on “unsubscribe” in an email or text message you receive from us. It may take up to ten (10) business days to register a change to your communication preferences.

Please note that even if you indicate your choice not to receive marketing or promotional messages from us, we may still communicate with you by email or text message regarding your use of our products and services (e.g., to send you payment receipts and customer service messages) and as otherwise permitted by applicable law.

b) Cookies

Most browsers let you remove or stop accepting cookies from the websites you visit. To do this, follow the instructions in your browser’s settings. Many browsers accept cookies by default until you change the settings. If you do not accept cookies, however, you may not be able to use all functionalities of our website or our website might not work properly. For more information about cookies, including how to see what cookies have been set on your browser and how to manage and delete them, visit www.allaboutcookies.org.

We use Google Analytics to help us understand the use of our website. You can learn more about Google Analytics cookies at <https://developers.google.com/analytics/resources/concepts/gaConceptsCookies> and about how Google protects your data at <http://www.google.com/analytics/learn/privacy.html>. You can prevent the use of Google Analytics relating to your use of our Sites by downloading and installing a browser plugin available at <https://tools.google.com/dlpage/gaoptout?hl=en>.

We use Meta Pixel to help us understand the effectiveness of our advertising and the actions users take on our website or when they see our advertisements on Facebook and Instagram. [insert comment about opting in and out of pixels].

Some Internet browsers may be configured to send “Do Not Track” signals to the online services that you visit. We currently do not respond to “Do Not Track” or similar signals. To find out more about “Do Not Track,” please visit <http://www.allaboutdnt.com>.

c) Advertising Choices

You can limit the use of your Personal Data for interest-based advertising by:

- **Browser settings:** blocking third party cookies in your browser settings.

- **Privacy browsers/plug-ins:** using privacy browsers or ad-blocking browser plug-ins that block tracking technologies.
- **Platform settings:** using platform/service provider settings to opt-out of use of your information for interest-based advertising:
 - **Google:** <https://adssettings.google.com/>
 - **Facebook:** <https://www.facebook.com/about/ads>
 - **Instagram:** https://accountscenter.instagram.com/ad_preferences/
- **Ad Industry Tools:** opting out of interest-based advertisements from companies participating in the following industry opt-out programs:
 - Network Advertising Initiative:
http://www.networkadvertising.org/managing/opt_out.asp
 - Digital Advertising Alliance: optout.aboutads.info.
 - AppChoices mobile app, available at
<https://www.youradchoices.com/appchoicesoptout.aboutads.info/> .
- **Mobile device settings:** using your mobile device settings to limit use of the advertising ID associated with your mobile device for interest-based advertising purposes.

d) Your mobile device settings

Your mobile device settings may allow you to choose the way that we collect and use some of your Personal Data (e.g., your location) or communicate with you. Please refer to your device settings or user manual to learn about those settings.

e) Withdrawing consent

You may withdraw your consent to our collection, use, and disclosure of your Personal Data as explained in this Privacy Notice at any time on reasonable written notice to us, subject to legal or contractual restrictions. To withdraw your consent, you may contact us in writing using the contact information in section 18 of this Privacy Notice.

If you withdraw your consent to our collection, use, and disclosure of your Personal Data for purposes that are integral to our relationship and dealings with you or your access to or use of our products and services, then you might not be able to proceed with your intended dealings with us or otherwise access, use, or receive the full benefit of our products and services.

If you withdraw your consent to our collection, use, and disclosure of your Personal Data for purposes that are not integral to our relationship and dealings with you or your access to or use of our products and services, then withdrawing your consent for those purposes will not affect your access to or use of our products and services.

If you withdraw your consent to our collection, use, and disclosure of your Personal Data, we may retain and use your Personal Data to comply with applicable law, to establish, enforce and exercise our rights and remedies, and for other purposes permitted by applicable law.

When the laws of the UK or of Brazil apply: Where our Processing of your Personal Data is based on your consent, you have the right to withdraw your consent at any time. If you do decide to withdraw your consent we will stop Processing your Personal Data for that purpose, unless there is another lawful basis we can rely on – in which case, we will let you know. Your withdrawal of your consent won't impact any of our Processing up to that point.

9. How does Vale secure Personal Data?

Personal Data is protected against unauthorized access, illegal Processing, or disclosure, as well as accidental loss, modification, or destruction. This applies regardless of whether such data is Processed electronically or on paper.

Vale has appropriate physical, technical, and organizational measures to protect Personal Data that are appropriate to the sensitivity and amount of Personal Data, the purposes for which it is used, and the format in which it is stored. We use a combination of measures to secure Personal Data, such as information classification, data backup and restoration and identity and access management.

In the event of deletion of Personal Data, the Process is conducted safely, in line with the appropriate technical measures, to ensure that the deleted Personal Data cannot be recovered.

a) Data Accuracy

We take every reasonable step to ensure that (a) your Personal Data that we Process is accurate and, where necessary, kept up to date; and (b) any of your Personal Data that we Process that is inaccurate (having regard to the purposes for which such Personal Data is Processed) is erased or rectified without delay.

We rely on you to ensure that your Personal Data held by us is as accurate, complete and up to date as necessary for the purposes for which we use the Personal Data. You must promptly notify us of any changes to your Personal Data using the functionalities available through our website, by contacting our customer service representatives, or by contacting our Data Protection Officer using the contact information in section 18 of this Privacy Notice. For more details, please see section 11 of this Privacy Notice.

b) Data Minimization

We take every reasonable step to ensure that your Personal Data that we Process is limited to the necessary Personal Data in connection with the purposes set out in this Privacy Notice.

10. For how long is Personal Data retained?

When the laws of laws of Canada apply: We retain your Personal Data for as long as necessary to achieve the purposes for which the information was collected as set out or referenced in this Privacy Notice, to comply with our legal obligations, and to enforce or protect our legal rights, or a longer period required or permitted by applicable law. We will then delete or destroy records of your Personal Data or anonymize the information to use it for serious and legitimate purposes, in accordance with applicable law.

When the laws of the UK apply: We will only retain your Personal Data for a limited period of time. This will depend on a number of factors, including:

- any laws or regulations that we are required to follow;
- whether we are in a legal or other type of dispute with each other or any third party;
- the type of information that we hold about you; and
- whether we are asked by you or a regulatory authority to keep your Personal Data for a valid reason.

When the laws of Brazil apply: We retain your Personal Data for as long as necessary to achieve the purposes for which the information was collected as set out or referenced in this Privacy Notice. Your Personal Data will be deleted once Processing is complete, unless retention is permitted under the Brazilian General Data Protection Law (LGPD) in the following circumstances:

- to comply with legal or regulatory obligations;
- for transfer to a third party, provided that the requirements for lawful data Processing under the LGPD are observed;
- for our exclusive use, provided that the data is anonymized and access by third parties is strictly prohibited.

11. What are your rights in relation to your Personal Data?

Depending on where you are based, you have certain rights in relation to your Personal Data.

Where the laws of Canada apply

You may reasonably request access to your Personal Data under our legal control and information about our use, disclosure, and retention of your Personal Data by submitting a written request to our Data Protection Officer using the contact information in section 18 of this Privacy Notice. Subject to applicable exceptions and limitations prescribed by applicable law, you will be given reasonable access to your Personal Data and you will be entitled to verify the accuracy and completeness of your Personal Data and have the information corrected as appropriate. You might be required to pay a reasonable fee for access to your Personal Data. We may decline to Process an access request that is unreasonably repetitive, frivolous, vexatious, or impracticable, or if we reasonably believe the requested access would infringe or jeopardize the privacy of other persons, violate any applicable law or legal requirement, or for other reasons permitted by applicable law.

Depending on the jurisdiction where you reside, you may also be entitled to request the rectification or deletion of your Personal Data under our legal control if our collection, disclosure or retention of the information is not authorized by law.

Where the laws of the UK apply

You have certain legal rights, which are briefly summarised in the table below, in relation to any Personal Data about you which we hold.

Where our Processing of your Personal Data is necessary for our legitimate interests, you can object to this Processing at any time. If you do this, we will need to show either a compelling reason why our Processing should continue, which overrides your interests, rights and freedoms or that the Processing is necessary for us to establish, exercise or defend a legal claim.

If you wish to exercise any of your rights please contact the Data Protection Officer noted below in the first instance.

You also have the right to lodge a complaint with the Information Commissioner's Office, which is the UK data protection regulator. More information can be found on the Information Commissioner's Office website at <https://ico.org.uk/>.

Your right	What does it mean?	Limitations and conditions of your right
Right of access	Subject to certain conditions, you are entitled to have access to your Personal Data (this is more commonly known as submitting a "data subject access request").	If possible, you should specify the type of information you would like to see to ensure that our disclosure is meeting your expectations. We must be able to verify your identity. Your request may not impact the rights and freedoms of other people, e.g. privacy and confidentiality rights of other staff.
Right to data portability	Subject to certain conditions, you are entitled to receive the Personal Data which you have provided to us and which is Processed by us by automated means, in a structured, commonly-used machine readable format.	If you exercise this right, you should specify the type of information you would like to receive (and where we should send it) where possible to ensure that our disclosure is meeting your expectations. This right only applies if the Processing is based on your consent or on our contract with you and when the Processing is carried out by automated means (i.e. not for paper records). It covers only the Personal Data that has been provided to us by you.
Rights in relation to inaccurate personal or incomplete data	You may challenge the accuracy or completeness of your Personal Data and have it corrected or completed, as applicable. You have a responsibility to help us to keep your personal information accurate and up to date. We encourage you to notify us of any changes regarding your Personal Data as soon as they occur, including changes to your contact details.	This right only applies to your own Personal Data. When exercising this right, please be as specific as possible.

Right to object to or restrict our data Processing	Subject to certain conditions, you have the right to object to or ask us to restrict the Processing of your Personal Data.	As stated above, this right applies where our Processing of your Personal Data is necessary for our legitimate interests. You can also object to our Processing of your Personal Data for direct marketing purposes.
Right to erasure	Subject to certain conditions, you are entitled to have your Personal Data erased (also known as the “ <i>right to be forgotten</i> ”), e.g. where your Personal Data is no longer needed for the purposes it was collected for, or where the relevant Processing is unlawful.	We may not be in a position to erase your Personal Data, if for example, we need it to (i) comply with a legal obligation, or (ii) exercise or defend legal claims.
Right to withdrawal of consent	As stated above, where our Processing of your Personal Data is based on your consent you have the right to withdraw your consent at any time.	If you withdraw your consent, this will only take effect for future Processing.

Where the laws of Brazil apply

The Brazilian General Data Protection Law (LGPD) gives you specific rights to your Personal Data, as described in Article 18 et. seq. of the LGPD and below:

- Right to obtain confirmation of whether we Process your Personal Data. Upon request, we will confirm whether or not we Process your Personal Data. Please note that if you use our services, we necessarily Process your Personal Data, as explained in this Privacy Notice.
- Right to access your Personal Data. You may request a report containing the Personal Data we Process about you.
- Right to request the correction of incomplete, inaccurate, or outdated Personal Data. If you believe that your Personal Data is incorrect, incomplete, or outdated, you may request its correction, indicating what should be changed and why. We may request supporting documentation to proceed with the change.
- Right to request anonymization, blocking, or deletion of unnecessary, excessive, or unlawfully Processed Personal Data. If you believe that we are Processing your Personal Data unnecessarily, excessively, or in violation of the LGPD, you may request that such data be anonymized, blocked, or deleted.
- Right to data portability to another service or product provider, subject to commercial and industrial secrecy, and pending regulation by the Brazilian National Data Protection Authority (ANPD). You may request the transfer of your Personal Data to another provider, in accordance with future regulations and provided that business confidentiality is preserved.
- Right to withdraw your consent. Where Processing is based on your consent, you may withdraw it at any time. Any Processing carried out based on the withdrawn consent will be discontinued.

- Right to request the deletion of Personal Data Processed based on your consent, except where retention is permitted by law. You may request the deletion of such data; however, the LGPD allows data retention for legal or regulatory compliance, research purposes (where anonymization is possible), transfer to third parties, or exclusive use by the controller provided the data is anonymized.
- Right to obtain information about third parties with whom we share your Personal Data. You may request additional information regarding the sharing of your data.
- Right to be informed about the possibility of withholding consent and the consequences of such refusal. Where consent is required, you have the right to be informed of the option not to consent and the implications thereof.
- Right to object to unlawful Processing. If you believe your Personal Data is being Processed in violation of the LGPD, you may object. We will carefully review your request and, if appropriate, cease the Processing activity.
- Right to request the review of decisions made solely on the basis of automated Processing. If decisions affecting you are made solely through automated means, you may request human review of such decisions.
- Right to file a complaint with the ANPD. You may submit a complaint to the ANPD regarding the Processing of your Personal Data.

If you have any questions or comments about the Processing of your Personal Data or wishes to exercise any of the rights ensured to you under the LGPD, please do not hesitate to contact our Data Protection Officer using the contact information in section 18 of this Privacy Notice.

Before responding to any request to exercise your rights, we may ask you to provide certain information to verify your identity, such as a copy of your identification document.

12. How does Vale collect and use non-Personal Data?

We may use your Personal Data to create and collect aggregated or anonymized data, so that the information no longer relates to an identifiable individual. We may use, disclose, transfer, and retain non-Personal Data in accordance with applicable law.

If non-Personal Data is combined with Personal Data, then we will treat the combined non-Personal Data as Personal Data for the purposes of this Privacy Notice for as long as the non-Personal Data is combined with the Personal Data.

13. How do advertised businesses handle Personal Data?

We have no responsibility or liability for, or control over, any independent business that is advertised by our products and services or correspondence, or their Processing of your Personal Data.

Our products and services and our correspondence (including emails) may include advertisements for independent businesses and their products and services or links to their websites. We have no responsibility or liability for, or control over, those independent businesses, their websites, products or services, or their Processing of your Personal Data. This Privacy Notice does not apply to the Processing of your Personal Data by independent businesses or through independent websites or online services. If you have questions about how those independent businesses or their websites or online services Process Personal Data, please contact the owner or operator of the independent businesses, websites, and services.

14. What about Personal Data posted to social media?

We have no control over, or responsibility or liability for, the Processing of the Personal Data that you post to or share in connection with social media sites.

If you use certain aspects of our website or other services to post information to social media sites, the Personal Data that you post or share in connection with the social media sites is visible to other persons and can be read, collected, used, and disclosed by other persons. Any information provided to social media sites and other sites is governed by their own privacy policies. You are solely responsible for the Personal Data that you choose to post or share in those situations. We have no control over, or responsibility or liability for, the Processing of the Personal Data that you disclose in those situations, and the Processing of the disclosed information is not subject to this Privacy Notice.

15. Changes to this Privacy Notice

Where the laws of UK and of Brazil apply: We in our sole discretion may change this Privacy Notice from time to time. We will post each revised Privacy Notice on our website at <https://valebasemetals.com/> and will provide additional notice of changes to this Privacy Notice as required by applicable law. All changes to this Privacy Notice will be effective when we post the revised Privacy Notice on our website, unless the revised Privacy Notice states otherwise. Our Processing of your Personal Data will be governed by the version of this Privacy Notice in effect at that time.

Where the laws of Canada apply: By using any of our products or services after any change to this Privacy Notice is effective, you confirm your acceptance of the change and consent to our Processing of your Personal Data as explained in the revised Privacy Notice, except as may be expressly specified in the revised Privacy Notice.

It is your responsibility to ensure that you read and understand the latest version of this Privacy Notice. The “Last Updated” date of this Privacy Notice (at the top of this Privacy Notice) is the date this Privacy Notice was last revised.

16. Email notices to you

Where the laws of Canada apply: You consent to our sending you emails (to the email addresses you provide to us) regarding this Privacy Notice and related matters and as otherwise permitted by applicable law.

17. Disclaimers, liability exclusions/limitations and disputes

The agreements (e.g., including the website terms of use: <https://valebasemetals.com/sustainability/document-library/>) that you accept (or are deemed to accept) when you use our website or purchase or use our products and services contain important provisions, including provisions disclaiming, limiting, or excluding our liability and the liability of other persons and organizations (including Processors) and provisions determining the applicable law and jurisdiction for the resolution of disputes. To the extent permitted by applicable law, each of those provisions applies to any dispute that may arise in relation to this Privacy Notice or our Processing of your Personal Data. Nothing in this Privacy Notice amends any of those other agreements.

18. Communication channel

To contact Vale's privacy team in relation to any queries or concerns in relation to the Processing of your Personal Data, click here: <https://vale.com/privacy-at-vale>. The purpose of this form is to establish a channel for contacting the Data Protection Officer and for the exercise of data subject's rights. Your message will be analyzed by Vale's Privacy Area and you will receive our contact at privacy@vale.com.

For matters not related to privacy or data protection, access Contact Us at: <https://vale.com/privacy-at-vale>.

Details of Controllers

For the purposes of this Privacy Notice, the relevant Controller is the following:

Controller Entity	Data Protection Officer Contact Details
Vale Base Metals Limited and its subsidiaries and affiliates	https://vale.com/privacy-at-vale

19. Definitions

- **“Cookie”** means a small file that is placed on your device when you visit a website (including our website). In this Privacy Notice, a reference to a “cookie” includes analogous technologies such as web beacons and clear GIFs;
- **“Controller”** means the entity that decides the reasons for Processing Personal Data, as well as how that Personal Data will be Processed. The controller is the entity ultimately accountable for complying with laws concerning the Processing of Personal Data;
- **“Personal Data”** means information (in any format) about a living individual (i.e., a natural person), who can be identified from that information, either on its own or when it's combined with other information held by us, but does not include (to the extent permitted by applicable law) information that is: (a) anonymized (including as a result of

aggregation) so that the information cannot be directly or indirectly associated with an identifiable individual and, in certain jurisdictions: (b) business contact information that enables an individual to be contacted at a place of business (please note that where UK and Brazil law apply this will still be Personal Data); or (c) not subject to regulation by Canadian “personal information” protection laws, including certain publicly available information (e.g., information in a telephone directory) (please note that where UK and Brazil law apply this will still be Personal Data);

- **“Special Category Personal Data”** (sometimes referred to as sensitive personal data or special category data) is Personal Data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, criminal convictions and offences, genetic or biometric data (where it’s Processed to uniquely identify someone, except where Brazil law applies, as the LGPD does not establish such a requirement for the characterization of biometric data), data concerning health or data concerning someone’s sex life or sexual orientation;
- **“Process”, “Processing” or “Processed”** means any activity carried out in relation to Personal Data, including access (including remote access), collect, use, modify (including aggregate, de-identify and anonymize), record, transfer, disclose, disseminate, retain, store, delete, destroy or dispose the Personal Data; and
- **“Processor”** means any person or entity that Processes Personal Data on behalf of and under the instruction of the Controller (other than employees of the Controller).